

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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CHARLES RANDOLPH,

Plaintiff

- against -

**CITY OF NEW YORK,
DETECTIVE JOSEPH PARCHEN (SHIELD # 4196),
DETECTIVE ROBERT KLEIN (SHIELD # 2872),
POLICE OFFICER JOHN DOE 1 AND POLICE
OFFICER JOHN DOE 2,**

Defendants.

Index No.

Purchased 8-20-23

Plaintiff designates
Bronx County as the
place of trial

The basis of the venue
is where the tort arose

SUMMONS

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
August 31, 2023



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****-----X
CHARLES RANDOLPH,****Plaintiff,****Index No.****VERIFIED
COMPLAINT****- against -****CITY OF NEW YORK,
DETECTIVE JOSEPH PARCHEN (SHIELD # 4196),
DETECTIVE ROBERT KLEIN (SHIELD # 2872),
POLICE OFFICER JOHN DOE 1 AND POLICE
OFFICER JOHN DOE 2,****Defendants.**

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Plaintiff CHARLES RANDOLPH, by his attorneys THE LAW OFFICES OF
ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the Defendants,
respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff CHARLES RANDOLPH was a resident of the State of New York.
2. At all times hereinafter mentioned, defendant CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendants, DETECTIVE JOSEPH PARCHEN

(SHIELD # 4196), DETECTIVE ROBERT KLEIN (SHIELD # 2872), POLICE OFFICER JOHN DOE 1 AND POLICE OFFICER JOHN DOE 2, were and are detectives and police officers employed by Defendants.

BACKGROUND

5. On June 5, 2018, at approximately 5:00 a.m., in the vicinity of 3428 Park Avenue in Bronx County, without just cause or provocation, defendants, including DETECTIVE JOSEPH PARCHEN (SHIELD # 4196), DETECTIVE ROBERT KLEIN (SHIELD # 2872), POLICE OFFICER JOHN DOE 1 AND POLICE OFFICER JOHN DOE 2, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Murder in the Second Degree and related charges.

6. On or about June 6, 2018, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff commenced.

7. Plaintiff was subsequently indicted by a Grand Jury.

8. Plaintiff remained in custody until his release on July 28, 2020.

9. Plaintiff had to defend against false charges until the criminal matter was dismissed upon the application of the Bronx County District Attorney on July 12, 2022.

PROCEDURAL POSTURE

10. On August 15, 2022, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

11. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.

12. A 50-H hearing has been held.

13. This action commenced within one year and ninety days of the accrual of the cause of action.

14. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

15. Paragraphs 1-14 are incorporated by reference as though fully set forth herein.

16. In arresting Plaintiff, the Defendants, including DETECTIVE JOSEPH PARCHEN (SHIELD # 4196), DETECTIVE ROBERT KLEIN (SHIELD # 2872) and POLICE OFFICER JOHN DOE 1 acted with malice.

17. Defendants, including DETECTIVE JOSEPH PARCHEN (SHIELD # 4196), DETECTIVE ROBERT KLEIN (SHIELD # 2872) and POLICE OFFICER JOHN DOE 1, engaged in the following malicious and unreasonable behavior (including but not limited to):

- POLICE OFFICER JOHN DOE 1 falsely claimed to the Grand Jury that Plaintiff was depicted in a video played for the Grand Jury;
- POLICE OFFICER JOHN DOE 1 falsely claimed to the Grand Jury that Plaintiff was the individual on video using a key to open the door to the decedent's building;
- DETECTIVE JOSEPH PARCHEN (SHIELD # 4196) and DETECTIVE ROBERT KLEIN (SHIELD # 2872) failed to disclose to the Grand Jury or Court that a witness to this incident did not identify Plaintiff as the

perpetrator;

- DETECTIVE JOSEPH PARCHEN (SHIELD # 4196) and DETECTIVE ROBERT KLEIN (SHIELD # 2872) ignored exculpatory information;
- DETECTIVE JOSEPH PARCHEN (SHIELD # 4196), DETECTIVE ROBERT KLEIN (SHIELD # 2872) and POLICE OFFICER JOHN DOE 1, did not make a full and complete statement of the facts regarding their investigation to the District Attorney's Office and Court; and
- DETECTIVE JOSEPH PARCHEN (SHIELD # 4196), DETECTIVE ROBERT KLEIN (SHIELD # 2872) and POLICE OFFICER JOHN DOE 1, created police reports containing deliberately false information.

18. The Defendants lacked probable cause to arrest Plaintiff.

19. All charges pending against Plaintiff were dismissed and sealed upon the application of the Bronx County District Attorney on July 12, 2022.

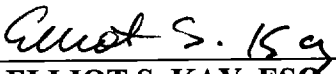
20. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty for approximately seven hundred and eighty-four (784) days, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
August 31, 2023

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ

Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX****CHARLES RANDOLPH,**-----X **Index No.**

Plaintiff

-against-

**CITY OF NEW YORK,
DETECTIVE JOSEPH PARCHEN (SHIELD # 4196),
DETECTIVE ROBERT KLEIN (SHIELD # 2872),
POLICE OFFICER JOHN DOE 1 AND POLICE
OFFICER JOHN DOE 2,****VERIFICATION**

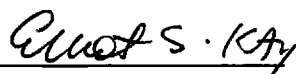
Defendants

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
August 31, 2023



ELLIOT S. KAY